

Disciplinary procedures and action against you at work

1. Overview

Your employer could start formal disciplinary action against you if they have concerns about your work, conduct or absence.

Before taking formal disciplinary action or dismissing you, your employer may try to raise the matter informally with you. However, they can go straight to their formal disciplinary or dismissal procedures.

Disciplinary procedures are a set way for an employer to deal with disciplinary issues. They should include a disciplinary hearing where you're given a chance to explain your side of the story.

There should also be a chance to appeal any disciplinary action your employer decides to take.

2. How disciplinary procedures work

Your employer should put their disciplinary procedure in writing, and make it easily available to all staff.

It should say what performance and behaviour might lead to disciplinary action and what action your employer might take.

It should also include the name of someone you can speak to if you do not agree with your employer's disciplinary decision.

Disciplinary steps

Your employer's disciplinary procedure should include the following steps:

- 1 A letter setting out the issue.
- 2 A meeting to discuss the issue.

- 3 A disciplinary decision.
- 4 A chance to appeal this decision.

Acas (Advisory, Conciliation and Arbitration Service) Code of Practice

Your employer's disciplinary procedures should follow the [Acas Code of Practice on disciplinary and grievance procedures](https://www.acas.org.uk/acas-code-of-practice-on-disciplinary-and-grievance-procedures) (<https://www.acas.org.uk/acas-code-of-practice-on-disciplinary-and-grievance-procedures>).

Your employer does not have to follow the Acas code. However, if they do not and you win an [employment tribunal \(/employment-tribunals\)](#) against them, you could get a larger payout.

There's more guidance about how employers should run disciplinaries in the [Acas guide on discipline and grievances at work](https://www.acas.org.uk/disciplinary-and-grievance-procedures) (<https://www.acas.org.uk/disciplinary-and-grievance-procedures>).

Disciplinary procedures and employment contracts

Your employer can also put their disciplinary procedures in your [employment contract \(/employment-contracts-and-conditions\)](#).

If your employer does this and then does not follow these procedures you could sue them for breach of contract.

Northern Ireland

Northern Ireland has different ways of [solving workplace disputes](https://www.nidirect.gov.uk/information-and-services/employment/resolving-workplace-disputes) (<https://www.nidirect.gov.uk/information-and-services/employment/resolving-workplace-disputes>).

3. Disciplinary hearings

Your employer should not take any disciplinary action before meeting with you first and discussing the problem.

This disciplinary meeting (normally called a 'hearing') should be at a reasonable time and place.

At the hearing your employer should:

- explain the complaint against you
- go through the evidence
- give you a chance to tell your side of the story

If you raise a significant new fact or issue at the hearing your employer might stop it and look into the issue. They should then rearrange the hearing at a later date.

Taking someone with you to a disciplinary hearing

You have the right to take someone with you to a disciplinary hearing, but you must tell your employer about this first.

Your companion can be either:

- a colleague
- a trade union representative
- a trade union official

If a colleague cannot go with you and you're not in the union you can ask to bring a family member or a Citizens Advice worker. However, your employer does not have to agree to this unless your employment contract says they must.

The companion can:

- present and/or sum up your case and say things to support your case
- speak to you during the hearing

Your companion cannot answer questions on your behalf.

Your companion cannot be disciplined for supporting you.

Disciplinary action

After the hearing your employer should write to you as soon as possible, saying what action they're going to take, and telling you about your right to appeal.

The decision might be:

- no action
- written warning
- final warning
- demotion
- [dismissal \(/dismissal\)](#)

It might also be anything else that could resolve the problem, for example an agreement to mediate with a co-worker you've had personal problems with.

4. Disciplinary appeals

If you think disciplinary action taken against you is unfair you can appeal.

Write to your employer saying you're appealing and why.

Appeal hearings

You should be offered another meeting to discuss your appeal. This appeal hearing should be held as soon as possible.

If possible it should be dealt with by someone who has not already been involved with your disciplinary action.

An appeal hearing will be similar to your original disciplinary meeting and you'll have the right to bring a companion.

Final decision

After the appeal meeting your employer should write to you with their final decision.

5. Suspension from work

When a disciplinary issue is being looked into you might be suspended from work. This does not happen very often. If it does it should normally be with pay and you should be told why you're being suspended.

Employment contracts

You can be suspended without pay if your [employment contract \(/employment-contracts-and-conditions\)](#) says your employer can do this, but

they must be acting reasonably.

If your employment contract does not say your employer can do this, your employer may still be able to suspend you, but with pay. To show that it's not a punishment the suspension will normally be on full pay.

Employment rights when suspended

You keep your employment rights while suspended. If you do not get the right pay you may be able to make a claim to an employment tribunal for 'unlawful deduction from wages'.

Talking to other employees, customers and/or suppliers

If you're suspended, you might be told not to talk to other employees, customers and/or suppliers. If this means you cannot defend yourself properly at a disciplinary hearing, you could make an appeal.

But if you've been asked not to talk and you do, your employer might decide to take further disciplinary action against you.

6. Help and advice with disciplinary issues

There are several organisations that could give you advice about disciplinary issues.

Acas

Acas (the Advisory, Conciliation and Arbitration Service) offers free, confidential and impartial advice about all employment rights issues.

Acas helpline

Telephone: 0300 123 1100

Textphone: 18001 0300 123 1100

Monday to Friday, 8am to 6pm

[Find out about call charges \(/call-charges\)](#)

Citizens Advice

Your [local Citizens Advice \(https://www.citizensadvice.org.uk/\)](https://www.citizensadvice.org.uk/) can also give free and impartial advice.

Trade unions

If you're a member of a trade union you can get help and advice from them.

Equality Advisory Support Service

Contact the Equality Advisory Support Service for advice about discrimination, equality and human rights.

FREEPOST
Equality Advisory Support Service
FPN4431

EASS helpline

[Online contact form \(http://www.equalityadvisoryservice.com/app/ask\)](http://www.equalityadvisoryservice.com/app/ask)

Telephone: 0808 800 0082

Textphone: 0808 800 0084

Monday to Friday, 9am to 8pm

Saturday, 10am to 2pm

[Find out about call charges \(/call-charges\)](#)

You can also find more information on the [Equality Advisory Support Service \(http://www.equalityadvisoryservice.com\)](http://www.equalityadvisoryservice.com) website.



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